

Page 1

1 SUPREME COURT OF THE STATE OF NEW YORK

2 COUNTY OF SUFFOLK

3 -----X

4 DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Index No.:

5 Plaintiffs,

600371/2021

6 -against-

7 RICHARD A. CALVAGNO II AND PATRICK J.

8 KARCHER,

9 Defendants.

10 -----X

11 330 Old Country Road

Mineola, New York

12 January 16, 2024

13 10:17 A.M.

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15
16 EXAMINATION BEFORE TRIAL of WILLIAM WURSTER, a
17 Nonparty witness herein, taken by Plaintiffs, pursuant
18 to Subpoena.
19

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1 A P P E A R A N C E S:

2

3 JOHN N. CUOMO LAW OFFICES

4 Attorneys for Plaintiffs

5 11 Fern Drive

6 Commack, NY 11725

7

8 BY: JOSEPH INDUSI, ESQ.

9 JOHN N. CUOMO, ESQ.

10

11

12 CYE E. ROSS, ESQ.

13 Attorney for Nonparty witness William Wurster

14 30 Vesey Street, Suite 1800

15 New York, NY 10007

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S T I P U L A T I O N S

IT IS HEREBY STIPULATED AND AGREED by
and between the attorneys for the respective parties
herein, and in compliance with Rule 221 of the Uniform
Rules for the Trial Courts

THAT the parties recognize the provision of
Rule 3115 subdivisions (b), (c) and/or (d). All
objections made at a deposition shall be noted by the
officer before whom the deposition is taken, and the
answer shall be given and the deposition shall proceed
subject to the objections and to the right of a person
to apply for appropriate relief pursuant to Article 31
of the CPLR.

THAT every objection raised during a
deposition shall be stated succinctly and framed so as
not to suggest an answer to the deponent and, at the
request of the questioning attorney, shall include a
clear statement as to any defect in form or other basis
of error or irregularity. Except to the extent
permitted by CPLR Rule 3115 or by this rule, during the
course of the examination persons in attendance shall
not make statements or comments that interfere with the
questioning

THAT a deponent shall answer all questions at a
deposition, except (i) to preserve a privilege or right

1 of confidentiality, (ii) to enforce a limitation set
2 forth in an order of a court, or (iii) when the question
3 is plainly improper and would, if answered, cause
4 significant prejudice to any person. An attorney shall
5 not direct a deponent not to answer except as provided
6 in CPLR Rule 3115 or this subdivision. Any refusal to
7 answer or direction not to answer shall be accompanied
8 by a succinct and clear statement of the basis
9 therefore. If the deponent does not answer a question,
10 the examining party shall have the right to complete the
11 remainder of the deposition

12 THAT an attorney shall not interrupt the
13 deposition for the purpose of communicating with the
14 deponent unless all parties consent or the communication
15 is made for the purpose of determining whether the
16 question should not be answered on the grounds set forth
17 in section 221.2 of these rules and, in such event, the
18 reason for the communication shall be stated for the
19 record succinctly and clearly.

20 THAT failure to object to any question
21 or to move to strike any testimony at this examination
22 shall not be a bar or waiver to make such objection or
23 motion at the time of the trial of this action, and is
24 hereby reserved; and

25 THAT this examination may be signed and

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1 sworn to by the witness examined herein before any
2 Notary Public, but failure to do so or to return the
3 original of the examination to the attorney on whose
4 behalf the examination is taken shall not be deemed a
5 waiver of the rights provided by Rules 3116 and 3117 of
6 the CPLR, and shall be controlled thereby, and

7 THAT certification and filing of the
8 original of this examination are waived; and

9 THAT the questioning attorney shall provide
10 counsel for the witness examined herein with a copy of
11 this examination at no charge.

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1 W I L L I A M W U R S T E R, having been first duly
2 sworn by Rosemarie Tulumello(Ellis), a Notary Public of
3 the State of New York, was examined and testified as
4 follows:

5 EXAMINATION BY

6 MR. INDUSI:

7 Q Please state your name for the record.

8 A William Wurster.

9 Q What is your address?

10 A 335 Curtis Avenue, Carle Place, New York
11 11514.

12 Q Good morning, Mr. Wurster. Is that right?

13 A Yeah.

14 Q My name is Joe Indusi. I'm an attorney and I
15 represent Thomas and Diane DeSousa who are the
16 plaintiffs in an action that you have been
17 subpoenaed in for today's deposition. I'm
18 going to ask you some questions. You can
19 give me answers verbally so she can take it
20 down. She's taking down everything I say.
21 Then she'll take down what you respond, so if
22 you can keep your answers verbal, I'm sure the
23 court reporter would appreciate that. She can
24 only write one person at a time, so I will ask
25 the question. I will do my best to not ask a

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1 follow-up question until you answer my first
2 question. I will probably do that a few
3 times, but I will do my best not to. If you
4 don't understand my question, just say --

5 A I'll ask.

6 Q -- I don't understand what you're really
7 asking. There's no trick questions here
8 today.

9 A Okay.

10 Q They're going to be all very straightforward
11 questions. If you need a break at any time,
12 let me know. I would just -- the only rule is
13 that you answer the question that's on the
14 table before we take any kind of break.

15 These are questions I'm sure are quick nos
16 but I have to ask you. Are you taking any
17 medications today --

18 A No -- well --

19 Q -- that -- let me ask this way: Any
20 medication that would affect your ability to
21 be truthful --

22 A No.

23 Q -- in your answers?

24 A Not at all.

25 Q Have you had any alcohol or drugs in the last

1 24 hours?

2 A I haven't drank in over 20 years. I don't
3 drink.

4 Q Not a problem.

5 Is there anything else that could affect
6 your ability to truthfully testify here today?

7 A No.

8 Q Perfect.

9 By whom are you employed?

10 A Westbury Jeep.

11 Q What is your job title there?

12 A Basically shop foreman mechanic shop.

13 Q How long have you worked there?

14 A 23 years.

15 Q And did you work anywhere before Westbury
16 Jeep?

17 A Yeah, I worked, yes.

18 Q In the car mechanic --

19 A I've been doing it for 40 years.

20 Q Understood.

21 Are you a licensed New York State
22 inspector?

23 A Yes.

24 Q How long have you been a licensed New York
25 State inspector?

1 A Oh, gosh. 38, 40 years. At least 38
2 years.

3 Q Do you know -- now you heard me say I
4 represent Thomas and Diane DeSousa. Do you
5 know Thomas and Diane DeSousa?

6 A Not at all.

7 Q Do you know a person named Richard Calvagno?

8 A From work, yes.

9 Q How do you know him from work?

10 A He works for the body shop, does tows for
11 us.

12 Q So when -- let me go back.

13 So he works for a company AAA-1 Towing?

14 A Yes.

15 Q And they do tow work for Westbury Jeep?

16 A Yes.

17 Q And Westbury Jeep sends them collision work
18 when it comes in?

19 A Yeah. They work with us, yes, yes, yes.

20 There's a couple of shops. They're one of the
21 ones that work with us.

22 Q And you know him through that arrangement with
23 Westbury Jeep?

24 A Yeah.

25 Q That's how you know him; you don't know him

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1 from hanging out at a bar. Professional
2 relationship?

3 A That's it, 100 percent professional.

4 Q Were you aware -- well, withdrawn.

5 Are you aware he owns a 2019 Dodge
6 Charger?

7 A From this, yes, yes.

8 Q Do you -- and are you aware we're here today
9 about the subject matter of that car?

10 A Yes.

11 Q Okay.

12 A I was informed of that, yes.

13 Q I'm going to ask you some questions today that
14 are going to be about that 2019 Dodge Charger
15 that Rich Calvagno owns, and I believe you
16 inspected it at least once or twice.

17 MR. ROSS: You don't know that he did
18 or didn't.

19 MR. INDUSI: I'm not asking him to
20 confirm. I'll ask him if he has a
21 recollection of it.

22 A I really don't remember.

23 MR. INDUSI: I want to basically let
24 him know that in the next set of questions
25 I'm going to ask him about the car and his

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1 involvement in doing an inspection.

2 A I really don't remember, to be honest.

3 That's really the truthful answer. We go
4 through 150, 200 cars a day there.

5 Q I will ask it this way: Do you remember ever
6 inspecting any of Rich Calvagno's cars?

7 A It's hard. Not really, no.

8 Q Okay.

9 A I mean, obviously.

10 Q I'll get to those questions. That answer
11 stands. That's fine. I'd like to ask you
12 some questions, though.

13 You did say you were a New York State
14 licensed inspector, correct?

15 A Yeah.

16 MR. INDUSI: I'd like to mark this.

17 (Whereupon, Motor Vehicle
18 Inspection Regulations manual was
19 marked as Plaintiffs' Exhibit 1 for
20 identification, as of this date.)

21 Q You want to take a look at that, Mr. Wurster?
22 When you have had a chance --

23 A You want me to read the whole book?

24 Q No. I want you to take a general flip
25 through.

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1 A (Perusing)

2 Q Have you seen that before?

3 A Yeah, yeah. It comes up on the machine.
4 You can reprint this right out of the machine.

5 Q Very good.

6 This governs how to perform -- this
7 document, which has been marked as Plaintiffs'
8 1, governs how a New York State Safety and
9 Emissions Inspection is performed; is that
10 fair to say?

11 A Yes.

12 Q And now I just want to ask you some general,
13 basic questions.

14 When you do a safety inspection on a
15 vehicle -- so let's just step back.

16 Person comes in, buys a new car from a
17 dealership, right? There's a safety
18 inspection done before it leaves the lot; is
19 that correct?

20 A Has to be. Any car sold in New York has
21 to have an inspection sticker on it.

22 Q Right. But I want to ask a specific
23 question.

24 There's two components to an inspection,
25 correct; there's a safety inspection and an

1 emissions inspection?

2 A Well, the first two years it's safety and
3 after that it's safety and emissions.

4 Q That's what I'm getting to, but I'm asking it
5 in steps so that we can build on it.

6 So when the car first leaves the lot, it's
7 safety only, correct?

8 A Yes.

9 Q The first year after the car left the lot, the
10 first annual inspection is safety again --

11 A Yes.

12 Q -- correct?

13 And then the subsequent inspection, which
14 would be the two-year anniversary from when it
15 left the lot, it gets an emissions and safety
16 inspection?

17 A Yes.

18 Q Now it goes to both --

19 A Yes.

20 Q -- correct?

21 And when we go through a safety
22 inspection, and you can tell me in your own
23 words what's involved, but I'm just going to
24 throw out some items that are typically
25 inspected, right, you're checking to see if

1 the brakes are okay, windshield, tint,
2 seatbelt, tire wear, all of these things; is
3 that correct?

4 A Yes.

5 Q Is there anything else that I missed?

6 A Wipers and lights.

7 Q Wipers, lights.

8 Horn?

9 A Of course.

10 Q Okay.

11 And, in fact, when you checked the tint,
12 you use -- New York State requires that you
13 put a tint meter on it; is that correct?

14 A Yes. We don't inspect cars with tint on
15 it.

16 Q When they leave the lot, they never have tints
17 on?

18 A No. It's a big thing now. There's no
19 such thing as inspecting a car with tint
20 anymore.

21 Q Let me ask you that: And working at a
22 dealership especially, you can't pass a car
23 with tints?

24 A No. It doesn't matter. It's New York
25 State.

1 Q It's New York State?

2 A It's nothing to do with anything.

3 Q Right.

4 But the tint part of the safety inspection
5 requires a tint meter put on the window?

6 A Yes, yes.

7 Q And if you had a car that came in with tints
8 that failed, you'd fail that car, correct?

9 A Yes.

10 Q And have you, in fact, ever failed any car for
11 tints?

12 A Yeah. All of the time we do it.

13 Q Totally get it.

14 A If they were on there and we know they're
15 on there.

16 Q That's it, you got to fail and, in fact, New
17 York State, it's a must pay pass or fail,
18 right? They have to -- there's no, "oh, we
19 give your money back and you go away." You
20 have to fail them. You have to give them the
21 fail. It has to state what the reason for the
22 fail is?

23 A Yeah.

24 Q Now, as part of a safety inspection, there's
25 no part of the safety inspection that requires

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1 you to inspect the muffler or exhaust; is that
2 correct?

3 A No, not really it's just -- no.

4 Q It's just the items we just went through?

5 A It's got to be on the car, obviously,
6 but --

7 Q There's nothing in that book that requires you
8 to check the exhaust or the muffler as part of
9 a safety inspection?

10 A No, not at all.

11 Q Now, I just want to ask you when you complete
12 an inspection, you enter the information into
13 a computer, right?

14 A Well, the information -- it reads the
15 information off the car.

16 Q I'm getting there. That's emissions
17 inspection, right?

18 A Yeah, yeah.

19 Q We're just talking about safety first.

20 A Yeah.

21 Q So you go through -- you do your safety
22 inspection, you enter your results and
23 findings into the computer and it generates an
24 inspection report, right?

25 A First you got to do the safety and then it

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1 goes through the emissions. It's all one
2 part.

3 Q Right. I'm just talking about the first year,
4 the first --

5 A Yeah.

6 Q We're just talking about safety right now.
7 Then we'll get into emissions.

8 A Yeah.

9 Q So I just want to show you what I'm going to
10 mark.

11 MR. INDUSI: This is number 2.

12 (Whereupon, Vehicle Inspection
13 Report was marked as Plaintiffs'
14 Exhibit 2 for identification, as of
15 this date.)

16 Q What does that look like to you?

17 A What does it look like to me? I guess
18 this has to be failing. With this plate
19 stuff, I don't get that, but it's like the car
20 passed.

21 Q I will ask you a direct question.

22 So this is the form -- this is the report
23 that comes out of the machine once you
24 complete an inspection; is that right, except
25 everything is redacted?

1 A Yeah, yes. I don't ever remember seeing
2 the plate condition on that.

3 Q This is just a general form. I just want to
4 know if this is the form that the New York
5 State VIP program generates --

6 A Yes.

7 Q -- and spits out something like that,
8 forgetting about the actual data in here.
9 This isn't for Mr. Calvagno's car. This is --
10 it's just a general form. I just want to
11 understand -- so I understand the process. I
12 don't know what you do and what you've done
13 for 40 years.

14 You inspect a car. You enter all the
15 information into a New York State system. It
16 spits out a report. You give the report to
17 the customer and you go about your business,
18 right, in general terms?

19 A We also put a sticker on the car.

20 Q And you put a sticker on?

21 A And if it's expired, you scrape it.

22 Q Right.

23 Do you recall, sitting here today, if you
24 generated a form like this for Mr. Calvagno?

25 A I can't remember back that far, to be

1 honest with you, no, definitely not.

2 Q That's fine.

3 Now, I want to go into the emissions
4 inspection part of it. So I asked you some
5 questions about safety inspection. Now I just
6 want to ask you some questions about emissions
7 inspections.

8 The new way a car is inspected for
9 emissions is through OBD2?

10 A It's been like that for a long time.

11 Q Before that, you actually had to hook
12 something up to an exhaust?

13 A We have to drive the car on a dynamometer.
14 That's a long time ago.

15 Q That's where the wheels actually spin?

16 A Yeah.

17 Q And there's a device that's hooked up to the
18 tail pipe to measure what's coming out of the
19 exhaust; is that correct?

20 A Yes.

21 Q Okay.

22 Newer cars, 1996 and newer, don't require
23 that. They require just simply plugging into
24 the OBD2?

25 A Yes, sir. When they went to the OBD2,

1 that's a federal thing.

2 Q And the reason for that is these newer cars,
3 and you can correct my language if it's wrong,
4 but the newer cars have a lot of sensors in
5 them that measure the emissions internally
6 and, therefore, by reading what's on the
7 computer of the car, you can tell if it's in
8 compliance with the emissions standard; is
9 that generally a correct statement?

10 A Yes.

11 Q When you do an OBD2 emissions inspection, you
12 don't have to really inspect any of the
13 physical components of the car, the car
14 essentially inspects itself with the machine;
15 is that fair to say?

16 A Well, if there's a check engine light,
17 there's something wrong, obviously, and it's a
18 self-diagnosing system. If there's something
19 altered or anything, it won't pass.

20 Q It won't pass, and the reason it won't pass is
21 the check engine light and that's automatic or
22 it won't pick it up?

23 A On-board diagnostics.

24 Q In fact, the only thing you need to physically
25 inspect for when you do an OBD2 inspection is

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1 to make sure that there are certain emissions
2 control devices that are present on the car?

3 I will give you an example; a catalytic
4 converter, right, there needs to be one?

5 A It's part of the check, yeah.

6 Q And there needs to be an EGR?

7 A Some cars don't have EGRs anymore.

8 Q Oh, really?

9 A A lot of the newer ones don't. They run
10 that clean.

11 Q Would you have a PCV valve?

12 A That's crankcase ventilation. Any car has
13 to have that.

14 MR. ROSS: Is that a question?

15 MR. INDUSI: Yes.

16 MR. ROSS: PCV valve, that's a
17 question?

18 MR. INDUSI: Yes. I'm asking does he
19 look for PCV valve.

20 MR. ROSS: Ask questions.

21 MR. INDUSI: Okay.

22 MR. ROSS: Don't suggest answers
23 before the question is even posed, okay?

24 Q So other than checking for these emissions
25 control devices, an emissions inspection is

1 really just plugging in the vehicle to the
2 OBD2; is that correct?

3 A First you do the check on the car. You
4 don't just plug it in. Inspect the car. You
5 check the car first.

6 Q When you say "you check the car" --

7 A You put it on the lift. You go over the
8 car whenever they came in. Then you inspect
9 it last always.

10 Q Understood.

11 A Always.

12 Q And I'm just asking you what's required for
13 New York State.

14 So what's required for New York State is a
15 safety inspection, which we went over, and the
16 emissions inspection; is that correct?

17 A Yeah.

18 Q Okay.

19 Nothing in here requires you to measure
20 the decibels of a muffler; is that correct?

21 A I don't believe there is. I haven't
22 looked in a while. I don't believe so.

23 MR. ROSS: If you don't know --

24 A No.

25 MR. ROSS: -- say you don't know.

1 A Don't know, obviously.

2 Q Have you, in the last 30 years of doing
3 inspections, ever used a decibel meter to
4 measure its sound coming out of an exhaust?

5 A No.

6 MR. CUOMO: Off the record.

7 (Whereupon, a discussion was held
8 off the record.)

9 Q When you do an inspection at Westbury Jeep, do
10 you have anything to do with preparing
11 invoices or anything like that?

12 A What do you mean repairing invoices?

13 Q Preparing, preparing.

14 A Preparing. That's a service writer's job.

15 Q Okay.

16 A We make recommendations.

17 MR. ROSS: Answer the question that
18 he's asking.

19 A No, no, no.

20 Q So when the person comes in to get a car
21 inspected, you get a work order to prepare an
22 inspection; is that correct?

23 A Repair order, yes.

24 MR. ROSS: Your question is what is
25 the procedure. Just ask him what the

1 procedure is, but stop telling him the
2 answer before you ask a question.

3 MR. INDUSI: I'm not. I'm asking if
4 the procedure is that he gets a repair
5 order and then he does something.

6 Q When you get the repair order for an
7 inspection --

8 MR. ROSS: What do you do?

9 MR. INDUSI: I know how to ask the
10 question. Thanks.

11 MR. ROSS: Then do it.

12 MR. INDUSI: I am doing it.

13 Q What do you do once you get a repair order?

14 A You have to get the car from the lot,
15 bring it into the shop, look it over.

16 Q And after you perform the New York State
17 inspection on the car, what do you do after
18 that?

19 A You park the car in the lot. You give the
20 repair order to the service writer.

21 Q And after that, they deal with the customer?

22 A Yeah. We don't deal with the customers.

23 Q When you say you give the repair order back to
24 the service writer, do you write anything on
25 that repair order?

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1 A No. We use everything electronic at work.

2 Q So you have the ability to enter
3 electronically information into the --

4 A No, no, no, not on the lines, no, no, no.

5 Q So how do you communicate your findings after
6 inspecting a vehicle to the service writer?

7 A We do it before and then you check the car
8 out, either going to pass it or not. It's a
9 dealer. Most of the cars are new. It's --
10 the service writer deals with the customers.

11 Q My question is: You deal with the service
12 writer, correct?

13 A Yeah.

14 Q How do you communicate with the service writer
15 about what you found?

16 A We talk verbally or use back and forth
17 through computers once you going on the RO.

18 Q Do you have the ability to update the
19 information in the repair order?

20 A Not -- not whatsoever, no.

21 Q So if there's an update to the repair order,
22 it sounds to me like what you're saying is you
23 communicate that verbally to the service
24 writer?

25 A Yes, only through the service writer

1 verbally, yes.

2 Q I'd like show you two work orders -- repair
3 orders, sorry, two repair orders involving Mr.
4 Calvagno's car. So I'm going to hand you --

5 MR. INDUSi: We can mark this as 3.

6 (Whereupon, repair orders were
7 marked as Plaintiffs' Exhibit 3 for
8 identification, as of this date.)

9 Q So what I have just handed you was turned over
10 by your attorney. It's been marked as
11 Plaintiffs' 3. I'm going to ask you --
12 probably easier to -- it's a number of
13 documents. It's page one, two, three, four,
14 five, six, seven, eight, it's the eighth page
15 from the back, so if you start at the back and
16 count eight forward.

17 MR. ROSS: You are referring to an
18 invoice?

19 MR. INDUSI: Yes.

20 MR. ROSS: What number?

21 MR. INDUSI: I just want him get to the
22 page to make sure we're talking about the
23 same thing.

24 A I see the repair order number. What do
25 you got?

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1 Q It says at the top, invoice number 140337.

2 It's the eighth page from the back.

3 A 14 --

4 Q 0337.

5 A There you go.

6 Q So if you could just take a look at that page
7 and look up when you're done?

8 A (Perusing)

9 MR. ROSS: Do you have a copy for me?

10 MR. INDUSI: Isn't that a copy right
11 there that you have? It's what you
12 provided.

13 MR. ROSS: I realize but I don't know
14 where it is exactly.

15 MR. INDUSI: It's the eighth page.
16 It's right here, that page.

17 MR. ROSS: This page?

18 MR. INDUSI: 140337, correct.

19 Q So what does this repair order show?

20 A That I inspected the car, and I don't
21 recall, it's too long ago.

22 Q I understand. You already said you don't
23 remember performing the inspection, but I just
24 want to show you this repair order and ask you
25 the question: Does this repair order reflect

1 that you did, in fact, inspect the car?

2 A Yes.

3 Q And does it show a date that the car was
4 inspected?

5 A The 3rd of May.

6 Q And what year?

7 A '22.

8 Q All right.

9 And based on this repair order, did the
10 car pass?

11 A Obviously.

12 Q You say "obviously." How -- why is is that
13 obvious?

14 A It says -- you know, whatever. I --
15 actually, yes, obviously, it was fine.

16 Q When you say "obviously," though, is there
17 anywhere on here where it indicates that the
18 car passed?

19 A It's performed New York State inspection.

20 Q Okay.

21 I just want to make sure there's no line
22 item that says pass or fail or something that
23 I missed. You say it's obvious. It wasn't
24 obvious to me, but I just want to ask you the
25 question: Why, when you see this, do you

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1 believe it's obvious that the car passed?

2 A It -- um -- it was inspected. It's a
3 fairly new car with low mileage.

4 Q Okay.

5 Is there anything on this repair order
6 that indicates pass or fail?

7 A No.

8 Q I want to go to repair order 182040. That is --
9 just for convenience, it's the third page from
10 the bottom of the stack, so count -- it's the
11 third page from the last page. It says at the
12 top 182040.

13 A Mm-mm.

14 Q What does this repair order show?

15 A Inspection was done on the car.

16 Q And was that inspection done by you?

17 A Obviously. My name, number's on it.

18 Q And when was this inspection done?

19 A May of '23.

20 Q Understood. Okay.

21 And, again, from looking at this record,
22 did the vehicle pass or fail the inspection on
23 that date?

24 A I don't remember, to be honest with you.

25 Q Okay.

1 A It's too hard to recall.

2 Q When an inspection is complete, pass or fail,
3 are you able to go back in the New York VIP
4 system and look back to generate a report of
5 the inspection on that vehicle?

6 A Only for one year.

7 Q For one year only?

8 A That's it.

9 Q Other than going back in the New York VIP
10 program to check what happened on a particular
11 inspection, is there any other record that's
12 available that would determine whether or not
13 a car passed or failed an inspection?

14 A No.

15 Q Your name is indicated on this service
16 record -- this repair order as well as your
17 license number. Do you enter this information
18 into the repair order or does somebody else at
19 Westbury Jeep enter that information?

20 A We can't do any of that. It comes
21 automatic, to be honest with you, once you
22 punch on that ticket.

23 Q Understood.

24 When you perform the actual inspection on
25 New York VIP program, do you have to enter in

Page 31

1 your credentials --

2 A Of course.

3 Q -- to show that you were the licensed
4 inspector that performed that inspection?

5 A Of course.

6 MR. INDUSI: I don't think I have
7 anything else.

8 (Whereupon, at 10:47 A.M. the
9 Examination of William Wurster was
10 concluded.)

11

12

13

14

WILLIAM WURSTER

15

16

17 Subscribed and sworn to before me

18 this ____ day of _____, 2024.

19

20

21

Notary Public

22

23

24

25

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I N D E X

WITNESS	EXAMINATION BY	PAGE
William Wurster	Mr. Indusi	3

-oo0oo-

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PLAINTIFFS'	DESCRIPTION	PAGE
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Exhibit 2	Vehicle Inspection Report	17
Exhibit 3	Repair orders	26

-oo0oo-

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C E R T I F I C A T E

I HEREBY CERTIFY that the Witness was duly
sworn by me, the officer before whom this
Examination Before Trial was taken, and that
the minutes herein are a true and accurate
transcription of the proceedings hereunder.



ROSEMARIE TULUMELLO (ELLIS)

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1 ** ERRATA SHEET **

CASE: DIANE C. DESOUSA, et al. vs.

2 RICHARD A. CALVAGNO II, et al.

DEPOSITION DATE: 1/16/2024

3 DEPONENT: WILLIAM WURSTER

4 PAGE LINE(S) CHANGE REASON

5 _____ | _____ | _____ | _____

6 _____ | _____ | _____ | _____

7 _____ | _____ | _____ | _____

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17 _____ | _____ | _____ | _____

18 _____ | _____ | _____ | _____

19 _____ | _____ | _____ | _____

20

21

WILLIAM WURSTER

22

SUBSCRIBED AND SWORN TO BEFORE ME

23 THIS _____ DAY OF _____, 20____.

24

25 _____
(NOTARY PUBLIC)_____
MY COMMISSION EXPIRES:

[0337 - book]

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New York Code

Civil Practice Law and Rules

Article 31 Disclosure, Section 3116

(a) Signing. The deposition shall be submitted to the witness for examination and shall be read to or by him or her, and any changes in form or substance which the witness desires to make shall be entered at the end of the deposition with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness before any officer authorized to administer an oath. If the witness fails to sign and return the deposition within sixty days, it may be used as fully as though signed. No changes to the transcript may be made by the witness more than sixty days after submission to the witness for examination.

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Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

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